

IP09

Constitutional, Statutory and Executive Bodies

About 2-3 questions a paper out of the 11 Indian Polity questions. Documented repeats: the Election Commission and Article 324 (2023, 2024), the CAG (2018, 2021, 2023), Finance Commission scope (2024), the CVC and the Santhanam Committee (2018, 2024) and NHRC chairperson eligibility (2023). Learn the master tables and you have banked these marks.

This is the most mechanical chapter in Indian Polity and therefore the most scoring. Every question is one of four things - which Article, which Act and year, who appoints, who removes. Nothing here needs thinking. It needs a table in your head.

Constitutional, Statutory and Executive Bodies

Constitutional (named in the Constitution)

- Election Commission - Art. 324
- UPSC and State PSC - Art. 315-323
- CAG - Art. 148-151
- Finance Commission - Art. 280
- Attorney General - Art. 76
- NCSC 338, NCST 338A, NCBC 338B
- Linguistic Minorities Officer - Art. 350B

Statutory (born of an Act)

- NHRC - PHRA 1993
- CVC - CVC Act 2003
- CIC - RTI Act 2005
- Lokpal - Act of 2013
- NGT 2010, CCI 2002
- NCW 1990, NCPCR 2005
- Delimitation Commission

Executive (a resolution only)

- NITI Aayog - 1 Jan 2015
- Planning Commission - 15 Mar 1950
- National Development Council - 1952
- CBI - 1 April 1963
- Law Commission of India

Appointment

committees

- CEC and ECs - PM + Cabinet Minister + LoP
- CVC - PM + Home Minister + LoP
- CBI Director - PM + LoP + CJI
- Lokpal - PM, Speaker, LoP, CJI, jurist
- CIC - PM + LoP + Cabinet Minister

Removal shortcuts

- Like an SC judge - only CEC and CAG
- Art. 317 - UPSC, by President on an SC report
- Other ECs - President, on the CEC's recommendation
- AG - during the pleasure of the President

First, the classification - this is where half the marks sit

Before you learn a single Article, learn the three-family test. A body is CONSTITUTIONAL if the Constitution itself names it. It is STATUTORY if Parliament created it by an Act. It is EXECUTIVE, or non-statutory, if the government simply passed a resolution. Nothing else decides the category. RPSC

asks this directly, in the form 'Which one of the following is NOT a constitutional body?', and the answer is always a famous commission that people assume is in the Constitution but is not.

Constitutional vs Statutory body - the working difference

Constitutional body	Statutory body
Created by the Constitution itself, by name	Created by an ordinary Act of Parliament or a State legislature
Can be altered or abolished only by a constitutional amendment	Can be altered or abolished by a simple amending Act
Powers and composition largely fixed in the text	Powers and composition are whatever the Act says
Independence protected by the Constitution - salary charged on the Consolidated Fund, judge-like removal	Independence depends only on the safeguards written into its own statute
EC 324, UPSC 315-323, CAG 148, FC 280, AG 76, NCSC 338, NCST 338A, NCBC 338B, 350B	NHRC 1993, CVC 2003, CIC 2005, NGT 2010, Lokpal 2013, NCW 1990, CCI 2002, NCPCR 2005

MASTER TABLE I - the constitutional bodies

Body	Article	Composition - learn the number
Election Commission of India	324	CEC + such other ECs as the President fixes; multi-member (CEC + 2 ECs) since 1 October 1993
Union Public Service Commission	315-323	Chairman + members; at least one-half must have held office for 10 years under the Union or a State
State Public Service Commission	315-323	Chairman + members, appointed by the Governor
Joint State Public Service Commission	315(2)	Created by Parliament by law on the request of two or more state legislatures
Comptroller and Auditor General	148-151	A single person - a one-man body
Finance Commission	280	Chairman + 4 other members

Body	Article	Composition - learn the number
Attorney General of India	76	A single person; the Advocate General of a State is Article 165
National Commission for Scheduled Castes	338	Chairperson + Vice-Chairperson + 3 other members
National Commission for Scheduled Tribes	338A	Chairperson + Vice-Chairperson + 3 other members
National Commission for Backward Classes	338B	Chairperson + Vice-Chairperson + 3 other members
Special Officer for Linguistic Minorities	350B	One officer appointed by the President - not a commission

MASTER TABLE 2 - statutory and executive bodies

Body	Type and founding law or order	Year
National Human Rights Commission	Statutory - Protection of Human Rights Act	1993
Central Vigilance Commission	Executive resolution 11 Feb 1964; statutory by the CVC Act	1964 / 2003
Central Information Commission	Statutory - Section 12, Right to Information Act	2005
Lokpal	Statutory - Lokpal and Lokayuktas Act, in force 16 Jan 2014	2013
National Green Tribunal	Statutory - NGT Act; established 18 Oct 2010, principal bench New Delhi	2010
Competition Commission of India	Statutory - Competition Act 2002; established 14 Oct 2003	2002 / 2003
National Commission for Women	Statutory - NCW Act 1990; functioning from 31 Jan 1992	1990 / 1992
National Commission for Protection of Child Rights	Statutory - Commissions for Protection of Child Rights Act 2005; set up March 2007	2005 / 2007
Delimitation Commission	Statutory - under an Act of Parliament; four so far (1952, 1963, 1973, 2002)	-

Body	Type and founding law or order	Year
Central Bureau of Investigation	Executive - Home Ministry resolution; police powers from the DSPE Act 1946	1 April 1963
Planning Commission	Executive - Cabinet resolution	15 March 1950
National Development Council	Executive - neither constitutional nor statutory; chaired by the PM	6 August 1952
Law Commission of India	Executive - non-statutory; first of independent India under M.C. Setalvad	1955
NITI Aayog	Executive resolution, replacing the Planning Commission	1 January 2015

TRAP

The four bodies candidates wrongly call constitutional: NITI Aayog, the CBI, the National Commission for Women and the Delimitation Commission. NITI Aayog and the CBI are not even statutory - they are pure executive creations. The NGT, CCI, NCW and NCPCR are statutory but never constitutional.

Election Commission - Article 324

Article 324 vests the superintendence, direction and control of the preparation of electoral rolls and of the conduct of all elections to Parliament, the State Legislatures and the offices of President and Vice-President in the Election Commission. Read that list carefully - panchayat and municipal elections are NOT in it. Those go to the State Election Commission under Articles 243K and 243ZA, and that swap is RPSC's favourite wrong option.

- Came into existence on 25 January 1950 - hence National Voters' Day on 25 January.

- Became a permanent multi-member body, CEC + two Election Commissioners, from 1 October 1993.
- Tenure: 6 years or 65 years of age, whichever is earlier; no re-appointment.
- The CEC and the ECs have equal powers; decisions are taken by majority.
- Appointment is now governed by the CEC and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023.
- Selection Committee under that Act: the Prime Minister (chair) + a Union Cabinet Minister nominated by the PM + the Leader of the Opposition in the Lok Sabha.
- A Search Committee headed by the Cabinet Secretary sends up a panel of five names.
- Removal of the CEC: in the same manner and on the same grounds as a Judge of the Supreme Court.
- Removal of any other Election Commissioner: by the President, but only on the recommendation of the CEC.
- Elections to panchayats and municipalities belong to the State Election Commission, not the ECI.

The election Articles – a favourite matching set

Article	Subject
324	Superintendence, direction and control of elections vested in the Election Commission
325	One general electoral roll; no exclusion on grounds of religion, race, caste or sex
326	Elections to the Lok Sabha and State Legislative Assemblies on the basis of adult suffrage
327	Power of Parliament to make provision with respect to elections
329	Bar to interference by courts in electoral matters

- Voting age lowered from 21 to 18 by the 61st Amendment Act, 1988.
- The Model Code of Conduct is NOT statutory – it evolved from a code drawn up in Kerala in 1960.

- EVMs were first used at Paravur, Kerala, in 1982.
- VVPAT was first used at the Noksen bye-election in Nagaland in 2013.
- NOTA was introduced in 2013 after the Supreme Court's judgment in *People's Union for Civil Liberties v. Union of India*.
- The Delimitation Commission is statutory, not constitutional; four have been set up - 1952, 1963, 1973 and 2002.
- The 84th Amendment froze seat allocation till 2026; the 87th Amendment, 2003 shifted delimitation to the 2001 Census.

ASKED IN RAS

Asked in RAS Pre 2023 - the Election Commission of India is constituted under which Article? Answer: Article 324. Asked again in RAS Pre 2024 as a statement set on the CEC's removal and the 1993 multi-member status. Two consecutive papers on the same body - expect a third.

UPSC and the State Public Service Commissions - Articles 315 to 323

The Public Service Commissions are the recruiting arms of the Union and the States. The Constitution deals with them in one continuous block, Articles 315 to 323. If a question asks for the 'group of Articles', the answer is 315-323 - not 315-320, not 316-323. Then learn each Article separately, because the matching version is asked as often as the range.

Article to subject - the PSC block

Article	Provision
315	Constitution of Public Service Commissions for the Union and the States; 315(2) Joint State PSC
316	Appointment and term of office of members

Article	Provision
317	Removal and suspension of a member of a Public Service Commission
318	Power to make regulations as to conditions of service
320	Functions of Public Service Commissions
321	Power to extend the functions of Public Service Commissions
322	Expenses charged on the Consolidated Fund of India or of the State
323	Reports of Public Service Commissions

- UPSC Chairman and members are appointed by the President; State PSC members by the Governor.
- Term: 6 years or 65 years for the UPSC; 6 years or 62 years for a State PSC. Learn that two-year gap.
- At least one-half of the members must be persons who have held office for at least ten years under the Union or a State.
- Removal under Article 317: only by the PRESIDENT, even for a State PSC member, and only after an inquiry held by the Supreme Court.
- A Joint State PSC (Art. 315(2)) is created by Parliament by law on the request of two or more state legislatures; its chairman and members are appointed and removed by the President.
- Expenses are charged on the Consolidated Fund - not voted by the legislature. That is the independence safeguard.
- The UPSC is NOT consulted on the making of reservations of appointments in favour of any backward class (the proviso to Article 320(4)).
- Its advice is advisory only; the government may reject it but must report the rejection to Parliament.
- The UPSC Chairman is ineligible for any further employment under the Union or a State; a MEMBER may still become UPSC Chairman or Chairman of a State PSC.
- The Commission presents an annual report to the President under Article 323, who lays it before Parliament.

TRAP

'A State PSC member is removed by the Governor' - wrong, and it is the most common wrong option in this chapter. The Governor can only SUSPEND. Removal is always by the President under Article 317 after a Supreme Court inquiry.

The CAG - Articles 148 to 151, a documented repeat

The Comptroller and Auditor General is the auditor of the whole public purse. Ambedkar called him probably the most important officer under the Constitution, because he guards the public money. RPSC has asked the CAG in 2018, 2021 and 2023 - three of the last four papers. Learn all four Articles, not just 148.

CAG - Article to subject, learn as a block of four

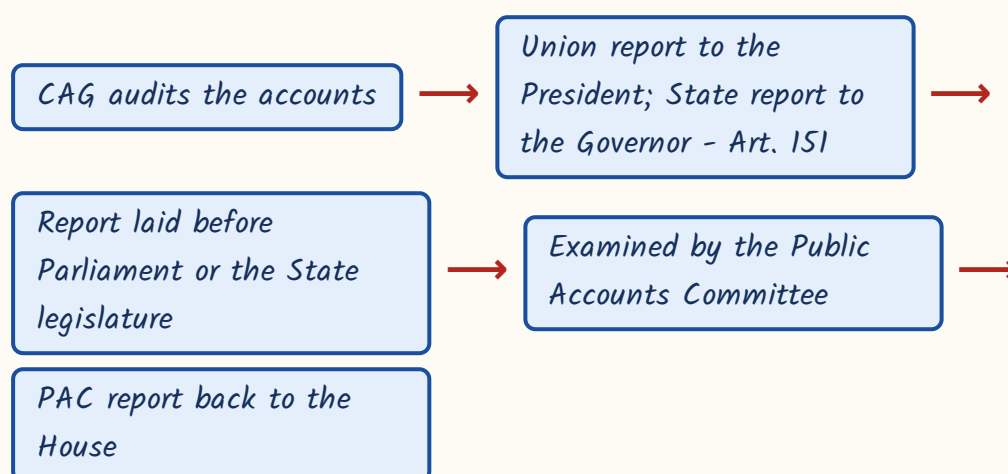
Article	Subject
148	Appointment, oath and conditions of service of the CAG
149	Duties and powers, as prescribed by Parliament
150	Form of accounts of the Union and the States, prescribed by the President on the advice of the CAG
151	Audit reports - Union reports to the President, State reports to the Governor

- Appointed by the President by warrant under his hand and seal - RPSC quotes that phrase verbatim.
- Term: 6 years or 65 years of age, whichever is earlier.
- Removed in the same manner and on the same grounds as a Judge of the Supreme Court.
- Salary equal to that of a Judge of the Supreme Court, and charged on the Consolidated Fund of India.

- After demitting office he is ineligible for any further office under the Union or any State.
- His duties and powers are laid down by the CAG's (Duties, Powers and Conditions of Service) Act, 1971, passed under Article 149.
- He is the head of the Indian Audit and Accounts Department and audits government companies as well.
- Accounts and audit were separated in 1976 - the CAG was relieved of compiling accounts.
- He is the friend, philosopher and guide of the Public Accounts Committee.
- First CAG of independent India: V. Narahari Rao.

Now the catch. The name says Comptroller AND Auditor General, but the Indian CAG does only half of what his British counterpart does. In Britain no money leaves the exchequer without the Comptroller's approval. In India the CAG has NO control over the issue of money from the Consolidated Fund - departments draw money on the authority of the Finance Ministry. His audit is entirely post-facto, after the money is spent. That single point is the standard 'which statement is NOT correct' option.

Where a CAG report goes - the accountability chain



ASKED IN RAS

Asked in RAS Pre 2021 - under which Article is the CAG appointed by the President? Answer: Article 148. Repeated in RAS Pre 2023 as a statement set: he is removed like a Supreme Court judge, and his salary is charged on the Consolidated Fund. Both statements are correct.

Finance Commission - Article 280

The Finance Commission is the constitutional referee of fiscal federalism. Every fifth year, or earlier if he thinks fit, the President constitutes it to decide how the money collected by the Centre should be shared with the States. Its recommendations are advisory only - the Union is not legally bound, though by convention it accepts the tax-devolution part and lays the report before Parliament with an action-taken memorandum.

- Article 280. Composition: a Chairman and FOUR other members - five in all.
- Qualifications of the members are fixed not by the Constitution but by the Finance Commission (Miscellaneous Provisions) Act, 1951.
- Function 1: distribution of the net proceeds of taxes between the Union and the States, and the allocation inter se among the States.
- Function 2: the principles governing grants-in-aid to the States out of the Consolidated Fund of India (Article 275).
- Function 3: measures to augment the Consolidated Fund of a State to supplement the resources of panchayats and municipalities - added by the 73rd and 74th Amendments.
- Function 4: any other matter referred to it by the President in the interests of sound finance.

- *NOT its function: fixing the annual borrowing limits of States under Article 293. That is decided by the Union Government - RPSC used exactly this as the wrong option in 2024.*

The Finance Commissions you must be able to name

<i>Commission</i>	<i>Chairman</i>	<i>Key point</i>
<i>1st (1951)</i>	<i>K.C. Neogy</i>	<i>The first Finance Commission of India</i>
<i>14th</i>	<i>Y.V. Reddy</i>	<i>Raised the States' share of the divisible pool to 42 per cent</i>
<i>15th</i>	<i>N.K. Singh</i>	<i>Recommended 41 per cent</i>
<i>16th (constituted 31 December 2023)</i>	<i>Arvind Panagariya</i>	<i>Award period 2026-27 to 2030-31; report submitted 17 November 2025</i>

ASKED IN RAS

Asked in RAS Pre 2024 - the Finance Commission is constituted under which Article? Answer: Article 280. The same paper carried the 'which one is NOT a function' version, whose answer was the Article 293 borrowing limits. Both are pure recall.

CURRENT LINK

Current link (as of September 2026): the Sixteenth Finance Commission's report, chaired by Arvind Panagariya, was tabled in Parliament on 1 February 2026. It kept the States' share of the divisible pool at 41 per cent, and its award period 2026-27 to 2030-31 began on 1 April 2026 - so it is a live, first-year award when you sit the paper.

Attorney General, and the commissions for SCs, STs and Backward Classes

The Attorney General is the first law officer of the Government of India, and the only non-member who may take part in the proceedings of Parliament. Article 76 is his Article. Do not confuse it with Article 165, the Advocate General of a State - the parallel office at the state level, appointed by the Governor.

- Appointed by the President; must be qualified to be appointed a Judge of the Supreme Court.
- Holds office during the pleasure of the President - no fixed term, and the Constitution prescribes no removal procedure.
- Has the right of audience in all courts in India.
- May speak in and take part in the proceedings of both Houses of Parliament and their committees, but has NO right to vote.
- First Attorney General of India: M.C. Setalvad, who also chaired the first Law Commission of independent India in 1955.

The social-justice bodies - body to Article to amendment

Body	Article	Inserted or recast by
National Commission for Scheduled Castes	338	89th Amendment Act, 2003 - the combined SC-ST commission was split
National Commission for Scheduled Tribes	338A	89th Amendment Act, 2003; effective 19 February 2004
National Commission for Backward Classes	338B	102nd Amendment Act, 2018
Special Officer for Linguistic Minorities	350B	7th Amendment Act, 1956, on the recommendation of the States Reorganisation Commission

- Before the 89th Amendment, 2003 there was a single combined National Commission for Scheduled Castes and Scheduled Tribes.
- Each of the three commissions has a Chairperson, a Vice-Chairperson and three other members, all appointed by the President.
- While investigating any matter each has all the powers of a civil court trying a suit.
- Each presents an annual report to the President, who causes it to be laid before both Houses of Parliament.
- Memory order: 338 - 338A - 338B is SC - ST - BC; 350B stands apart because it is about language, not caste.

NHRC - the Protection of Human Rights Act, 1993

The NHRC is statutory, not constitutional. It was set up under the Protection of Human Rights Act, 1993. The Act was substantially amended in 2019, and RPSC asked the amended position in 2023 - so learn the post-2019 rules and know exactly what they replaced.

- Chairperson: a person who has been Chief Justice of India OR a Judge of the Supreme Court. Before the 2019 Amendment only a former CJI was eligible - the pool was widened.
- Term: 3 years or 70 years of age, whichever is earlier. The 2019 Amendment cut the term from five years to three.
- Composition after 2019: Chairperson + FIVE full-time members.
- The five: one serving or retired Supreme Court judge, one serving or retired Chief Justice of a High Court, and three members of whom at least one must be a woman.
- Deemed or ex officio members: the chairpersons of the NCSC, NCST, NCW, NCBC, NCPCR and the Chief Commissioner for Persons with Disabilities.
- Selection committee, six members - first, the Prime Minister, who chairs it

- Second, the Speaker of the Lok Sabha
 - Third, the Deputy Chairman of the Rajya Sabha
 - Fourth and fifth, the Leaders of the Opposition in the Lok Sabha and the Rajya Sabha
 - Sixth, the Union Home Minister
-
- It cannot inquire into a violation of human rights that is more than ONE YEAR old.
 - Its recommendations are advisory, not binding; the authority must report the action taken within one month.
 - It cannot itself punish anyone - it can only recommend action, compensation or prosecution.
 - It has the powers of a civil court while inquiring, and may intervene in a human rights proceeding pending before a court.
 - So it is a recommendatory watchdog, not a court. Every negative-framed NHRC question is built on one of these limits.

ASKED IN RAS

Asked in RAS Pre 2023 - after the Protection of Human Rights (Amendment) Act, 2019, who is eligible to be appointed Chairperson of the NHRC? Answer: a person who has been Chief Justice of India or a Judge of the Supreme Court. Note also that the State Human Rights Commission under the same Act is the single most repeated topic in the Rajasthan Polity paper - its committee is headed by the Chief Minister, not the Prime Minister.

The anti-corruption trio - CVC, CBI and Lokpal

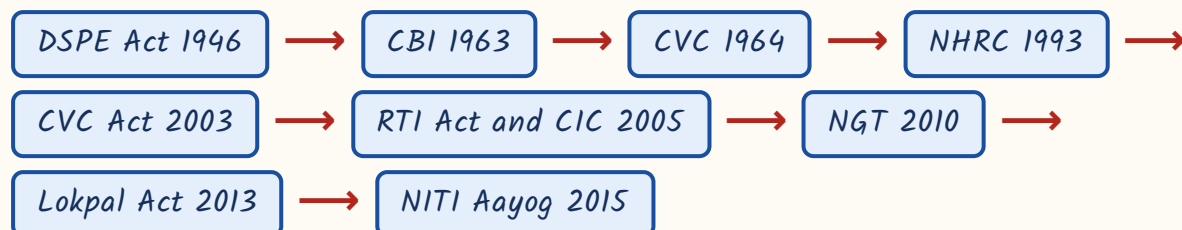
Three bodies, three different legal statuses, three different appointment committees. The CVC was recommended by the Santhanam Committee on

Prevention of Corruption and set up by an executive resolution on 11 February 1964. For nearly forty years it had no statutory backing. After the Supreme Court's directions in Vineet Narain (1997) it was finally made statutory by the Central Vigilance Commission Act, 2003. RPSC asked the Santhanam link in 2018 and again in 2024.

- CVC composition: a Central Vigilance Commissioner (chairperson) + not more than two Vigilance Commissioners.
 - Appointed by the President on the recommendation of a committee of the Prime Minister, the Union Home Minister and the Leader of the Opposition in the Lok Sabha.
 - Term: 4 years or 65 years of age, whichever is earlier.
 - Removed by the President on the ground of proved misbehaviour or incapacity, after an inquiry by the Supreme Court.
 - It exercises superintendence over the CBI in matters relating to the Prevention of Corruption Act.
 - First Central Vigilance Commissioner: Nittoor Srinivasa Rau.
-
- CBI: set up on 1 April 1963 by a resolution of the Home Ministry - an executive body, neither constitutional nor statutory.
 - It derives its police powers from the Delhi Special Police Establishment Act, 1946.
 - Under Section 6 of that Act it needs the consent of a State Government to investigate within that State.
 - It functions under the Ministry of Personnel, Public Grievances and Pensions (DoPT), not the Home Ministry.
 - Director appointed on the recommendation of a committee of the Prime Minister, the Leader of the Opposition in the Lok Sabha, and the Chief Justice of India or a Supreme Court judge nominated by him.

- Minimum tenure of the Director is 2 years, extendable up to a total of 5 years under the 2021 amendment.
- Lokpal and Lokayuktas Act, 2013 - assent 1 January 2014, came into force 16 January 2014.
- Lokpal = a Chairperson + a maximum of eight members; not less than half must be judicial members.
- Term: 5 years or 70 years of age, whichever is earlier.
- Selection Committee, five members: the Prime Minister, the Speaker of the Lok Sabha, the Leader of the Opposition in the Lok Sabha, the Chief Justice of India or a Judge nominated by him, and one eminent jurist.
- First Lokpal of India: Justice Pinaki Chandra Ghose, appointed in 2019.
- The First ARC recommended a Lokpal and Lokayuktas as far back as 1966 - the Act took 47 years to arrive.

Chronology of the integrity architecture - a ready-made ordering question



ASKED IN RAS

Asked in RAS Pre 2018 and again in RAS Pre 2024 - the CVC was set up in 1964 on the recommendation of which committee? Answer: the Santhanam Committee. RAS Pre 2024 also asked who, besides the PM and the LoP, sits on the CVC selection committee. Answer: the Union Minister of Home Affairs.

TRAP

Three committees, three different third members. CVC = PM + LoP + HOME MINISTER. CBI Director = PM + LoP + CJI. Chief Information Commissioner = PM + LoP + a Union Cabinet Minister nominated by the PM. Get the third name right and you get the question.

NITI Aayog, and the master table of appointment and removal

NITI Aayog replaced the Planning Commission on 1 January 2015. Both were creatures of a mere resolution - the Planning Commission of a Cabinet resolution of 15 March 1950, NITI Aayog of a Union Cabinet resolution of 1 January 2015. Neither ever had constitutional or statutory status. That single fact is the most asked thing about NITI Aayog, and the wrong option always reads 'it is a statutory body created by an Act of Parliament'.

- The Prime Minister is the ex officio Chairperson of NITI Aayog.
- Governing Council = all Chief Ministers + the Lieutenant Governors of Union Territories.
- There is a Vice-Chairperson, full-time and part-time members, ex officio members, and a Chief Executive Officer of the rank of Secretary to the Government of India.
- First Vice-Chairman: Arvind Panagariya - the same man who now chairs the 16th Finance Commission.
- It is a think tank. It allocates no funds; all fund allocation moved to the Finance Ministry.
- National Development Council - set up 6 August 1952, neither constitutional nor statutory, chaired by the Prime Minister.
- Law Commission of India - non-statutory and executive; its first chairman in independent India (1955) was M.C. Setalvad.

WHO APPOINTS, WHO REMOVES - revise only this in the last week

Office	Appointed by	Removed by / how
Chief Election Commissioner	President, on the recommendation of PM + a Union Cabinet Minister + LoP in Lok Sabha (2023 Act)	Like a Supreme Court judge - address by both Houses
Other Election Commissioners	President, same committee	President, on the recommendation of the CEC
UPSC Chairman and members	President	President, after an inquiry by the Supreme Court (Art. 317)
State PSC Chairman and members	Governor	President, after an inquiry by the Supreme Court (Art. 317)
Comptroller and Auditor General	President, by warrant under his hand and seal	Like a Supreme Court judge
Finance Commission Chairman and members	President	No special procedure - it is a temporary body
Attorney General	President	Holds office during the pleasure of the President
NCSC / NCST / NCBC Chairperson	President	As prescribed - not a judge-like procedure
NHRC Chairperson and members	President, on a six-member committee headed by the PM	President, on a Supreme Court inquiry into proved misbehaviour
Central Vigilance Commissioner	President, on the recommendation of PM + Home Minister + LoP	President, on a Supreme Court inquiry
CBI Director	Committee of PM + LoP + CJI or his nominee	A fixed minimum tenure of 2 years protects him
Lokpal Chairperson and members	President, on a five-member Selection Committee	President, on a Supreme Court reference
Chief Information Commissioner	President, on the recommendation of PM + LoP + a Union Cabinet Minister nominated by the PM	President, on a Supreme Court inquiry

Office	Appointed by	Removed by / how
Chairperson, NITI Aayog	No appointment - the Prime Minister holds it ex officio	Not applicable

YAAD RAKHO

Two shortcuts worth more than a page of reading. One: only the CEC and the CAG are removed exactly like a Supreme Court judge - nobody else, so any option saying that about a UPSC member or the NHRC Chairperson is wrong. Two: the first-incumbents matching set is fixed - CAG V. Narahari Rao, CVC Nittoor Srinivasa Rau, CIC Wajahat Habibullah, Lokpal Pinaki Chandra Ghose, AG M.C. Setalvad, NITI Aayog Vice-Chairman Arvind Panagariya.

CURRENT LINK

Current link (as of September 2026): Gyanesh Kumar took charge as the 26th Chief Election Commissioner on 19 February 2025 - the first CEC appointed under the 2023 Act, and therefore the live illustration of the new selection committee. Justice A.M. Khanwilkar has been Lokpal Chairperson since 10 March 2024. Expect the 'first CEC appointed under the 2023 Act' framing.

REVISION RECAP

1. Constitutional = named in the Constitution; statutory = created by an Act; executive = created by a resolution. Every classification question turns on this one test.
2. Election Commission - Art. 324; existed from 25 Jan 1950; permanent three-member body from 1 Oct 1993; tenure 6 years or 65.
3. 2023 Act selection committee for the CEC and ECs: PM + a Union Cabinet Minister nominated by the PM + LoP in Lok Sabha; a Search Committee under the Cabinet Secretary sends five names.
4. Art. 325 no discrimination in rolls; 326 adult suffrage (61st Amendment, 1988 lowered 21 to 18); 329 bar to court interference.

5. MCC non-statutory (Kerala 1960); EVM Paravur 1982; VVPAT Noksen 2013; NOTA 2013 after PUCL v. Union of India; Delimitation Commission statutory, four so far.
6. UPSC Art. 315-323; 6 years or 65 (State PSC 62); half the members must have 10 years' government service; removal only by the President under Art. 317 after a Supreme Court inquiry.
7. UPSC is not consulted on reservations for backward classes; its Chairman gets no further government employment, but a member may still become Chairman of the UPSC or of a State PSC.
8. CAG Art. 148 appointment, 149 duties under the 1971 Act, 150 form of accounts, 151 reports. Six years or 65; removed like an SC judge; first CAG V. Narahari Rao.
9. The CAG is an auditor only - no control over the issue of money from the Consolidated Fund, and his audit is entirely post-facto.
10. Finance Commission Art. 280 - Chairman + 4 members, every fifth year, advisory only; qualifications under the 1951 Act; borrowing limits under Art. 293 are NOT its job.
11. 1st FC K.C. Neogy; 14th Y.V. Reddy 42 per cent; 15th N.K. Singh 41 per cent; 16th Arvind Panagariya, award 2026-27 to 2030-31, tabled 1 Feb 2026, 41 per cent retained.
12. Attorney General Art. 76, qualified to be an SC judge, speaks in Parliament but has no vote, holds office during the President's pleasure; Advocate General Art. 165; first AG M.C. Setalvad.
13. NCSC 338, NCST 338A (89th Amendment 2003, effective 19 Feb 2004), NCBC 338B (102nd Amendment 2018), Linguistic Minorities Officer 350B (7th Amendment 1956).
14. NHRC - PHRA 1993; chairperson a former CJI or SC judge after 2019; term 3 years or 70; Chairperson + 5 full-time members; six-member selection committee headed by the PM.
15. NHRC limits: no case older than one year, recommendations not binding, and it cannot punish.
16. CVC - Santhanam Committee, resolution 11 Feb 1964, statutory 2003 after Vineet Narain; CVC + max 2 VCs; 4 years or 65; committee PM + Home Minister + LoP; first CVC Nittoor Srinivasa Rau.
17. CBI - 1 April 1963 resolution, powers from the DSPE Act 1946, State consent under Section 6, under DoPT; Director by PM + LoP + CJI, tenure 2 to 5 years.
18. Lokpal Act 2013, in force 16 Jan 2014 - Chairperson + max 8 members, half judicial, 5 years or 70; first Lokpal Pinaki Chandra Ghose, 2019.
19. NITI Aayog 1 Jan 2015 by executive resolution, replacing the Planning Commission of 15 March 1950; PM ex officio Chairperson; Governing Council of all CMs and UT LGs; allocates no funds.
20. Only the CEC and the CAG are removed exactly like a Supreme Court judge - the single most useful discriminator in this chapter.